

Complaint to the European Ombudsman – EUDA and comparability of THC data

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European Ombudsman

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Complaint concerning possible maladministration by the European Union Drugs Agency (EUDA) in the control and publication of data on THC content in cannabis

Unsubstantiated control of the comparability of EUDA cannabis data

Dear European Ombudsman,

I. EUDA's statutory duties and the substance of the complaint

Regulation (EU) 2023/1322 of the European Parliament and of the Council did not establish EUDA merely as a passive recipient of data supplied by the Member States. Under Article 4(1)(a), the Agency is to provide the Union and the Member States with factual, objective, reliable and comparable information on drugs and drug-related issues. Under Article 4(2), in carrying out its tasks it is to apply a scientifically based, integrated, balanced and multidisciplinary approach and fully respect fundamental rights.

Article 5 includes among the Agency's specific tasks the collection and analysis of information and data, their dissemination and the monitoring of the drugs phenomenon. Of central importance here is Article 6(1)(f), under which EUDA is to ensure improved comparability, objectivity and reliability of information and data at Union level, inter alia by developing indicators and non-binding common standards in cooperation with the National Focal Points, with the aim of achieving greater uniformity of measurement methods used by the Member States and the Union [1].

Article 15(1) and (2) further requires EUDA to establish a Network of Forensic and Toxicological Laboratories. That network is intended, inter alia, to generate data and exchange information, support quality-assurance systems and further harmonise data-collection and analytical methods. The

complaint therefore does not assert that EUDA is a superior supervisory authority over national police laboratories. It concerns EUDA's own statutory responsibility for the quality, reliability, comparability and transparent interpretation of the data that it processes and publishes at Union level [1].

EUDA's response of 25 September 2026 must be read against those duties. The Agency itself acknowledged that differences in analytical methods, treatment of THC and THCA, sample preparation and storage, and measurement uncertainty may affect analytical results. At the same time, it confirmed that it does not maintain a systematic inventory of the methods used by individual forensic laboratories in Member States to determine THC, does not hold comprehensive information enabling comparison of GC, GC-FID, LC or HPLC, approaches to THC/THCA, sampling, storage and measurement uncertainty, and has not carried out a systematic comparative assessment of THC determination methods between Member States.

EUDA further stated that, since its launch at the end of 2025, its laboratory network has not undertaken dedicated work on THC/THCA determination methods or the harmonisation of related analytical procedures, and that the Agency has not conducted the comparative assessment raised in my submission, has not decided to conduct or commission it, and that no such activity is currently planned.

This is the core of this complaint. I am not asking the European Ombudsman to order EUDA to prescribe a particular chromatographic method, to review Czech or other national criminal proceedings, or to turn EUDA into an inspection body for national laboratories. I ask you to examine whether EUDA properly fulfils its own duties in controlling, processing, interpreting and publishing European data where it itself acknowledges methodological factors capable of changing the result, yet for the specific THC-content indicator does not systematically map whether national inputs represent the same analytical quantity and a comparably defined sample.

EUDA's discretion in selecting specific scientific priorities and tools does not, in my submission, mean that the Agency need not explain how it fulfils the express objective of the Regulation to provide reliable and comparable data. Where the comparability of specific inputs has not been demonstrated, it is also a matter of good administration whether EUDA transparently states those limitations alongside the published averages and trends.

I ask you to investigate possible maladministration by the European Union Drugs Agency (EUDA) in ensuring, controlling, interpreting and publishing data on THC content in cannabis. The complaint is based primarily on the duties directly imposed on EUDA by Regulation (EU) 2023/1322 and on the tension between those duties and what the Agency itself stated in response Ref. EXO/FHP/pd (26) D 106 of 25 September 2026.

Submissions to the Agency and its response

I first contacted EUDA on 15 May 2026. Following correspondence with Danilo Ballotta on 22 May and a reminder on 3 June, on 7 August I addressed a formal call to act under Article 265 TFEU to the Agency; receipt was confirmed the same day. I supplemented the materials on 19 August. I received the complete six-page response on 25 September (Annexes 1–5). The Agency thereby adopted a position: this complaint does not allege continuing procedural inaction under Article 265 TFEU.

In its response, EUDA explained that it does not determine the procedures of police laboratories and is not required, at an individual's request, to carry out precisely the study proposed by that individual. I

respect those limits of competence. At the same time, EUDA stated that its Network of Forensic and Toxicological Laboratories began operating at the end of 2025, has not yet undertaken dedicated work on THC/THCA methods, does not hold complete data on the methods used by individual laboratories, and has made no decision to carry out a comparative assessment. It referred to ISO/IEC 17025 accreditation and proficiency testing, but itself expressly acknowledged that this information does not permit a conclusion on the comparability of THC/THCA determination methods. It did not explain how these answers relate to the specific average and trend that it publishes.

On 26 September I prepared a follow-up objection and two annexes: a communication from Commission services and a Danish ministerial communication (Annexes 6–8). I attach the objection as a precise statement of the questions that remain open. If I do not have proof that it has been delivered to EUDA, I do not present it as already delivered and I do not challenge the Agency's response to its new individual questions. Any EUDA response to the objection may be added to this inquiry later.

Data and materials requiring explanation

EUDA reports for 2024 an average THC content of 12% in seized herbal cannabis and 24.6% in resin; according to it, the THC-content index in resin increased by 66% between 2014 and 2024 [2]. Its methodology page notes differing representativeness, differences in the calculation of national averages and laboratory standards, including within a single country [3]. In the tables and general notes [5], I found no evidence for these figures showing whether individual inputs capture native Δ^9 -THC itself, total THC including the contribution of THCA, or another quantity. I do not claim that specific historical Czech police analyses necessarily formed part of that series; EUDA must first confirm or exclude that link.

The Commission services letter Ref. Ares(2026)3399259 of 31 March 2026, in a verified Czech translation, distinguishes the Union agricultural method for cannabis control from national forensic procedures. According to this non-binding view of the Commission services, States may use either gas or liquid chromatography in a criminal context according to the applicable framework; it is not a binding Commission decision (Annex 7). The Danish Ministry of Justice communication of 28 June 2024 explains that the Vestre Landsret judgment of 9 March 2023 rejected, as sufficient stand-alone evidence of exceeding the Danish 0.2% limit for the products concerned, a result in which THCA had been converted to THC by heating during gas chromatography. Reports were subsequently changed so that, alongside total THC, they also contained information on THC itself, and relevant criminal cases were reviewed. Liquid chromatography had already been used in some analyses since 2020 [6]. The document does not establish a general prohibition on GC or a Czech criminal-law threshold. It does, however, make it possible to ask the specific question whether a methodological break occurred in any EUDA input series.

The study by Mechtler, Bailer and de Hueber compared individual plants of known fibre-hemp varieties and warns against drawing conclusions about an entire crop from an unrepresentative sample [8].

International cannabinoid chemist doc. Lumír Ondřej Hanuš, DrSc. [16], in a response to me for court proceedings dated 13 March 2015, referring to that study, identified an extreme difference of more than 28-fold in THC within one cannabis variety [11]. Toxicologist and expert doc. Peter Ondra, CSc. [17], in communications to me and the courts dated 29 April 2013 and 24 September 2014, described the importance of precisely defining the part of the cannabis plant to be analysed and confirmed analyses of extracts for the “Cannabis is Medicine” research programme that I lead: different extracts showed

cannabinoid ranges of CBD 0.17–57% and THC 0.13–67.51% [14]. For both substances, the range between individual active-substance values is more than one hundredfold.

The expert institute of chemistry of the Faculty of Science, Palacký University Olomouc, stated to me in an expert opinion for the court dated 10 August 2015 that the cannabis plant itself is not a chemical precursor, contrary to what the Czech judiciary has maintained from 2010 to the present when refusing to refer a preliminary question to the Court of Justice of the EU; the expert opinion also emphasised the importance of precisely defining the part of the cannabis plant to be analysed [15].

Annex I to Regulation (EU) 2022/126 for the agricultural regime requires, for an objective analysis, a representative sample from 50 cannabis plants under procedure A and 200 under procedure B and the exclusion of field margins; the method prescribes gas chromatography and does not apply directly to criminal evidence [7]. The ENFSI methodology refers, for a certain type of similar seized flowering material, to 50 flowers rather than 50 plants in a field; elsewhere, according to the Czech Customs Administration, it refers to 30 cannabis plants for analysis [13]. The UNODC methodology describes, inter alia, the chromatographic-area ratio (THC + CBN) / CBD rather than a uniform criminal threshold [12]. In 2025 the Police of the Czech Republic stated that it first issued its own methodology including representative sampling in 2021 and had previously used ENFSI [9]. The August submission also cites a communication from the Institute of Criminalistics of 25 June 2026 concerning the standard operating procedures of regional units. The question remains whether these specific national procedures form inputs to the EUDA indicators concerned.

For completeness: in my EUDA objection of 26 September I refer to the publicly reported Portuguese case of Paul Santos and to my own experience from 2012. Without the complete original laboratory protocols, I do not present them as proven errors by Portuguese or Czech authorities or as proof of an error in EUDA's published data. The input statistical units for drug offences also differ (reports in the Czech Republic, charges in Denmark) and therefore constitute a separate limitation on comparison [4]; differences in THC measurement do not, without more, establish an error in offence counts or similar statistics.

Possible maladministration alleged

1. EUDA has not explained the link between laboratory definitions and its specific indicators: which countries contributed to the 2024 averages and the 2014–2024 trend, what THC quantity was actually supplied, what material and sampling the input represents, and who examined any possible methodological break. The absence of a complete inventory of national forensic methods does not itself prove that the data are defective; I ask that it be established whether another adequate validation procedure and a documented audit of those inputs exists.
2. The response of 25 September relies on the legal limits of EUDA's mandate, general reporting mechanisms and laboratory accreditation. Even respecting scientific discretion, it does not explain how, when publishing the average and trend, the Agency ensures that the same analytical quantities are being compared, or what qualifications it gives users if it cannot establish this. I ask that the completeness and adequacy of the reasoning be examined specifically on this point.
3. EUDA has not provided a substantive assessment of whether the issue raised by the Danish case, the Commission communication and the sampling materials should be referred to the team responsible for

cannabis indicators or to the network under Article 15 of Regulation (EU) 2023/1322. The Agency may set its own scientific priorities, but its Regulation requires it to work on reliable and comparable data and on the quality of analytical methods [1]. I ask that it be examined whether the decision not to address the topic for the time being was substantively and transparently linked to protecting the interpretation of already published data. EUDA's 2026 programme envisages work on the quality of national data and refers to significant budgetary resources [23]; the size of the budget alone does not prove maladministration or an obligation to commission a particular study.

What I ask the European Ombudsman to do

1. Request an explanation of the methodological trail for the 2024 indicator and the 2014–2024 series: participating countries, including the Czech Republic and Denmark, sources, type of material, distinction between native and total THC, sampling, aggregation, available information on analytical methods, uncertainty and recorded methodological changes. Establish which of these data the Agency actually holds and which it has never checked.
2. Assess whether the Agency's response of 25 September adequately addressed the distinction between not assuming supervision over national laboratories and EUDA's responsibility for interpreting its own indicators; if appropriate, request a further concrete response and reasons for its validation procedure.
3. Establish whether, when preparing and revising its series, EUDA assessed the possible impact of the Danish reporting change after 2023 and whether the two new materials will be provided to the relevant team and laboratory network. The actual impact can only be determined after verifying whether and how Danish measurements enter those series.
4. If comparability of the measured quantity and representativeness are not demonstrated for some inputs, ask EUDA expressly to describe the limitations alongside the public figures concerned, consider revising the wording, and state whether it considers further investigation necessary. Separately assess how limitations on the comparability of offence statistics are explained.
5. Consider proposing a solution or recommendation within the Ombudsman's powers. I do not ask you to determine the correct chemical result yourself, establish a uniform criminal-law methodology, order a particular research project or review national criminal cases.

Admissibility and scope of the complaint

I am an EU citizen residing in the Czech Republic and submit this complaint in my own name. As chairman of the alliance of non-governmental organisations Cannabis is The Cure, z. s., I also state that I represent their affected criminalised members; my position is recorded in the Czech public register [10]. The subject of the inquiry is the conduct of an EU agency that I have repeatedly contacted and whose written position of 25 September I attach together with the objection of 26 September 2026. I am acting within the two-year period under Article 2(3) of Regulation (EU, Euratom) 2021/1163 [21]. I seek good administration and transparent reasoning, not a judicial ruling on the validity of a national criminal-law provision.

Article 2 of the 2003 Act of Accession made the pre-existing *acquis* binding on the Czech Republic from 1 May 2004, but did not create a common criminal-law protocol for sampling and measuring THC/THCA [18]. Framework Decision 2004/757/JHA was adopted only on 25 October 2004 [19], and Article 83 TFEU does not itself prescribe an analytical technique [20]. I mention this historical gap as an explanation of the continuing problem of data interpretation, not as a claim that EUDA breached the Treaty of Accession. Likewise, I will pursue separately any request under Regulation (EC) No 1049/2001 for access to existing documents; it is not the subject of this complaint.

For assessment of the matter, I am sending you separately as annexes:

- 1) EUDA response Ref. EXO/FHP/pd (26) D 106 of 25 September 2026 to the EUDA call of 7 August 2026
- 2) Objection to EUDA's response dated 26 September 2026

The list of materials in EUDA file Ref. EXO/FHP/pd (26) D 106 is also available for download on the Konopí je lék.cz website at <https://www.konopijelek.cz/european-union-drugs-agency-euda/>

The EUDA file Ref. EXO/FHP/pd (26) D 106 and the materials on the website contain:

1. Letter to EUDA dated 15 May 2026.
2. Email exchange with EUDA (Danilo Ballotta) of 22 May and 3 June 2026.
3. Formal call to EUDA of 7 August 2026, including confirmation of receipt.
4. Supplements to EUDA of 19 August and 9 September 2026.
5. Complete EUDA response Ref. EXO/FHP/pd (26) D 106 of 25 September 2026.
6. Objection to EUDA's response dated 26 September 2026.
7. Commission services letter Ref. Ares(2026)3399259 of 31 March 2026 in English and in an official Czech translation.
8. Communication of the Danish Ministry of Justice dated 28 June 2024 in an unofficial English translation, the Danish original, and a Czech court-certified expert translation.
9. Expert opinions, reports and statements of Prof. Lumír Hanuš of 13 March 2015 (Hebrew University of Jerusalem), doc. Peter Ondra of 29 April 2013 and 24 September 2014 (Palacký University Olomouc), and the expert institute of the Faculty of Science, Palacký University Olomouc, dated 10 August 2015.
10. Complaint to the European Ombudsman concerning EUDA dated 27 September 2026.

Yours sincerely, and thank you for your attention,

Mgr. Dušan Dvořák